



LIN 23/021

Migration (Specification under clause 485.231 – Educational Institutions) Instrument (LIN 23/021) 2023

made under subclause 485.231(2) of Schedule 2 to the *Migration Regulations 1994*.

Compilation No. 1

Compilation date: 14 December 2024

Includes amendments: *Migration Legislation Amendment (Graduate Visas No. 2) Instrument (LIN 24/086) 2024*

Prepared by Department of Home Affairs

About this compilation

This compilation

This is a compilation of the *Migration (Specification under clause 485.231 – Educational Institutions) Instrument (LIN 23/021) 2023* that shows the text of the law as amended and in force on 14 December 2024 (the **compilation date**).

The notes at the end of this compilation (the **endnotes**) include information about amending laws and the amendment history of provisions of the compiled law.

Uncommenced amendments

The effect of uncommenced amendments is not shown in the text of the compiled law. Any uncommenced amendments affecting the law are accessible on the Register (www.legislation.gov.au). The details of amendments made up to, but not commenced at, the compilation date are underlined in the endnotes. For more information on any uncommenced amendments, see the Register for the compiled law.

Application, saving and transitional provisions for provisions and amendments

If the operation of a provision or amendment of the compiled law is affected by an application, saving or transitional provision that is not included in this compilation, details are included in the endnotes.

Modifications

If the compiled law is modified by another law, the compiled law operates as modified but the modification does not amend the text of the law. Accordingly, this compilation does not show the text of the compiled law as modified. For more information on any modifications, see the Register for the compiled law.

Self-repealing provisions

If a provision of the compiled law has been repealed in accordance with a provision of the law, details are included in the endnotes.

I, Andrew Giles, Minister for Immigration, Citizenship and Multicultural Affairs,
acting under subclause 485.231(2) of Schedule 2 to the *Migration Regulations 1994*
(the **Regulations**):

- (a) specify that an Australian university or non-university education provider is an educational institution for subclause 485.231(2) of Schedule 2 to the Regulations if:
 - (i) it is registered on the Commonwealth Register of Institutions and Courses for Overseas Students established by section 14A of the *Education Services for Overseas Students Act 2000*; and
 - (ii) offers courses at the bachelor's degree level or above.

Endnotes

Endnote 1—About the endnotes

Endnotes

Endnote 1—About the endnotes

The endnotes provide information about this compilation and the compiled law.

The following endnotes are included in every compilation:

Endnote 1—About the endnotes

Endnote 2—Abbreviation key

Endnote 3—Legislation history

Endnote 4—Amendment history

Abbreviation key—Endnote 2

The abbreviation key sets out abbreviations that may be used in the endnotes.

Legislation history and amendment history—Endnotes 3 and 4

Amending laws are annotated in the legislation history and amendment history.

The legislation history in endnote 3 provides information about each law that has amended (or will amend) the compiled law. The information includes commencement details for amending laws and details of any application, saving or transitional provisions that are not included in this compilation.

The amendment history in endnote 4 provides information about amendments at the provision (generally section or equivalent) level. It also includes information about any provision of the compiled law that has been repealed in accordance with a provision of the law.

Misdescribed amendments

A misdescribed amendment is an amendment that does not accurately describe how an amendment is to be made. If, despite the misdescription, the amendment can be given effect as intended, then the misdescribed amendment can be incorporated through an editorial change made under section 15V of the *Legislation Act 2003*.

If a misdescribed amendment cannot be given effect as intended, the amendment is not incorporated and “(md not incorp)” is added to the amendment history.

Endnote 2—Abbreviation key

ad = added or inserted	orig = original
am = amended	par = paragraph(s)/subparagraph(s) /sub-subparagraph(s)
amdt = amendment	pres = present
c = clause(s)	prev = previous
C[x] = Compilation No. x	(prev...) = previously
Ch = Chapter(s)	Pt = Part(s)
def = definition(s)	r = regulation(s)/rule(s)
Dict = Dictionary	reloc = relocated
disallowed = disallowed by Parliament	renum = renumbered
Div = Division(s)	rep = repealed
exp = expires/expired or ceases/ceased to have effect	rs = repealed and substituted
F = Federal Register of Legislation	s = section(s)/subsection(s)
gaz = gazette	Sch = Schedule(s)
LA = <i>Legislation Act 2003</i>	Sdiv = Subdivision(s)
LIA = <i>Legislative Instruments Act 2003</i>	SLI = Select Legislative Instrument
(md not incorp) = misdescribed amendment cannot be given effect	SR = Statutory Rules
mod = modified/modification	Sub-Ch = Sub-Chapter(s)
No. = Number(s)	SubPt = Subpart(s)
o = order(s)	<u>underlining</u> = whole or part not commenced or to be commenced
Ord = Ordinance	

Endnotes

Endnote 3—Legislation history

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Name	Registration	Number	Commencement	Application, saving and transitional provisions
<i>Migration (Specification under clause 485.231 – Educational Institutions) Instrument (LIN 23/021) 2023</i>	24 March 2023	F2023L00340	25 March 2023	-
<i>Migration Legislation Amendment (Graduate Visas No. 2) Instrument (LIN 24/086) 2024</i>	13 December 2024	F2024L01677	14 December 2024	-

4 *Migration (Specification under clause 485.231 – Educational Institutions) Instrument (LIN 23/021) 2023*

Endnote 4—Amendment history

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Provision affected	How affected
paragraph (a)(ii)	am. F2024L01677
paragraph (b)	rep. F2023L00340, <i>Legislation Act 2003</i> , s. 48C
commencement	rep. <i>Legislation Act 2003</i> , s. 48D